

REPORT

OF THE PORTFOLIO COMMITTEE ON DEFENCE, HOME AFFAIRS, SECURITY SERVICES AND WAR VETERANS' AFFAIRS

ON

REPORT ON STATELESSNESS OF MIGRANTS IN ZIMBABWE

SECOND SESSION – TENTH PARLIAMENT

Presented to Parliament on – November 2024

S.C.13 . 2024

On Thursday, 12 October 2023, the Speaker announced that the following members shall serve on the Portfolio Committee on Defence, Home Affairs, Security Services and War Veterans Affairs:-

Hon. Nguluvhe A, Hon. Sithole S, Hon. Chibhagu G, Hon. Chikwinya N, Hon. Makumbe T, Hon. Machingura R, Hon. Butawu Z, Hon. Taruvinga F, Hon. Mashonganyika D, Hon. Makwiranzou C, Hon. Kaitano K, Hon. Pindukai T, Hon. Chimbaira G, Hon. Mahlangu S, Hon. Madzivanyika C, Hon. Nyamuronda R, Hon Gumbo A, Hon Ncube E, Hon Musanhi K, Hon Mashavave G, Hon Mutimbanyoka, Hon Murwira T, Hon Mhetu Z, Hon Mudzingwa L, Hon Mavhudzi M, Maoneke E, Hon Sakupwanya S, Hon Ncube F

Hon Nguluvhe, Albert to be the Chairperson

1.0 INTRODUCTION

Despite the significant contributions of migrants to the growth and development of both their countries of origin and residence, they often face numerous challenges. Zimbabwe, with a substantial migrant population, is no exception. many of these migrants face the risk of being statelessness. Although, Section 43 of the Zimbabwean Constitution provides that "every person who was born in Zimbabwe before publication day of the Constitution is a Zimbabwean by birth if one or both of his or her parents was a citizen of a country which became a member of SADC in 1992 and is resident in Zimbabwe". However, a growing number of migrants of various origins remain undocumented due to their reluctance to engage with authorities to regularise their citizenship. It is against this background that, the Committee on Defence, Home Affairs, Security and War Veterans Affairs resolved to conduct an enquiry on the plight of migrants in order to investigate and establish the causes and challenges they are facing in acquiring primary documentation and proffer recommendations that could address these challenges.

2.0 OBJECTIVES:

The key objectives of the inquiry were to:

i. Assess the existence and magnitude of people who are at risk of statelessness in Zimbabwe as well as their geographical spread.
ii. Establish the causes of statelessness and factors rendering individuals at risk of statelessness.
iii. Identify challenges faced by the undocumented migrants in accessing primary documents with a view to make recommendations.

3.0 METHODOLOGY

a) The committee conducted an oral evidence session with Amnesty International Representatives on the existence, magnitude and challenges faced by undocumented migrants in all their spheres of life.
b) Gathered evidence from the Registrar General`s office on 17 June 2024 to establish whether the issue of statelessness do exist in Zimbabwe as well as their geographical spread.
c) Conducted public hearings to gather public views regarding the existence of statelessness people in Zimbabwe, understand their circumstances, determine the number of people who are at risk, and gather potential solutions.

Table. 1. Shows places conducted public hearings by the Committee

DATE	PROVINCE	VENUE
Monday 2 July 2024	Manicaland	Red Wing Mine Hall
Tuesday 23 July 2024	Masvingo	Cheshanga Hall, Chiredzi
Wednesday 24 July 2024	Bulawayo	Selborne Hotel
Thursday 25 July 2024	Midlands	Gweru Theatre Hall
Friday 26 July 2024	Harare	Epworth Town Council Hall
Saturday 26 July 2024	Mashonaland Central	Hala Hotel Bindura

4.0 COMMITTEE`S FINDINGS

4.1 Submissions from the Registrar General

Mr R. Machiri, the Registrar General submitted to the Committee that, statelessness refers to a situation where an individual is not recognized as a national or citizen of any country. Stateless people are characterised by lack of nationality as well as possession of primary documents such as passport, national identification card and birth certificate. They may also be denied basic rights such as education, healthcare, employment, and property ownership. They are particularly vulnerable to abuses, including exploitation, trafficking and may have difficulty accessing government services and social programs.

The Registrar General, also made reference to section 43 of the Constitution of Zimbabwe which provides that, "every person who was born in Zimbabwe before the publication day of the constitution is a Zimbabwean citizen by birth if one or both of his or her parents were citizens of a country which became a member of SADC in 1992 and is a resident in Zimbabwe". This means that any person who was born in Zimbabwe to parents with a claim to citizenship of any SADAC state including Malawi, Mozambique, Zambia or South Africa and is residing in Zimbabwe is a Zimbabwean citizen by birth. Further section 36 of the Constitution protects citizenship of minors whose nationality and parents are unknown by highlighting that "a child found in Zimbabwe who is or appears to be less than 15 years of age and whose nationality and parents are not known is presumed to be a Zimbabwean citizen by birth." Section 38 (2) of the

Constitution provides that “any person who has been continuously and lawfully resident in Zimbabwe for at least ten years, whether before or after the effective date and who satisfies the conditions prescribed by an Act of Parliament is entitled on application to be registered as a Zimbabwean citizen. This therefore protects the rights of permanent residence and other persons who might have stayed in Zimbabwe for a long time. More so in terms of the *Birth and Registration Act Chapter 5:02* birth registration is compulsory in Zimbabwe and birth certificates are issued for free to persons below the age of six years.

With regard to the number of statelessness people in Zimbabwe, the Registrar General informed the Committee that the issue of statelessness has not yet been ascertained with certainty that it exists in Zimbabwe. He added that, in 2023, the Civil Registry Department made a decision to undertake a study in collaboration with the United Nations High Commissioner for Refugees which indicated its willingness to provide financial resources amounting to USD 300 000 for the exercise but however this was not done due to lack of funding.

The Registrar General further highlighted that; a Statelessness Taskforce has been established so far to produce a desk review report that will inform the quantitative aspect of the research which will be spearheaded by ZIMSTAT. The Statelessness Task Force comprises of Ministries of Home Affairs and Cultural Heritage, Justice, Legal and Parliamentary Affairs, Foreign and International Trade, Public Service, Labour and Social Welfare, Civil Registry Department,
Immigration Department, Zimbabwe Republic Police, President`s Office, Zimbabwe Statistics Agency and UNHCR.

4.2 Submissions from public hearings

4.2.1 Existence and magnitude of statelessness in Zimbabwe

Amnesty International presented findings of their report to Parliament on the existence and magnitude of statelessness in Zimbabwe. Citing a joint study that was conducted by the United Nations High Commissioner for Refugees (UNHCR) and the United Nations Refugee Agency, the report revealed that approximately 300,000 individuals in Zimbabwe are currently at risk of statelessness. These include migrants from Mozambique, Malawi and Zambia who were brought in by colonial authorities to work on farms and mines around the country.

During public hearings, participants expressed different views on the prevalence and extent of statelessness in Zimbabwe. The majority, particularly in Gweru and Bindura, disputed the existence of more than 300 000 people which were reported by Amnesty International as not authentic. They argued, there is no official data about the number of stateless people in the country and the issue has not yet been ascertained with certainty that it exists in Zimbabwe. They further argued that, the current registration laws are good enough for genuine document seekers to obtain them without any challenges and easing these registration laws could pose a national security threat, as it might enable criminals from other countries to register in Zimbabwe. Some participants recommended stricter citizenship laws to safeguard the country. However, who were in support of the claim by Amnesty Internation argued that children born out of wedlock and undocumented migrants are vulnerable to statelessness since most of them have failed to meet the requirements of the *Birth and Death Registration Act (Chapter 5:02)* which provides that anyone born in Zimbabwe to be registered within 42 days of such birth, regardless of one`s nationality.

4.2.2 Children with single parent

The Committee noted that there were children who were either born of single parent or were under the care of single parents. In most of the cases, these parents either did not have primary documents themselves or they did not have required documentation to obtain primary documents such as birth records for the children. The situation was further exacerbated by the fact that the acquisition of primary documents by single parents and guardians in charge of minors had become extremely impossible owing to stringent regulatory requirements that had to be met for such documents to be obtained. For example, the Birth and Death Registration Act Chapter 5:02 does not allow a father to obtain documentation for a child in the absence of the mother. Guardians in charge of minors cannot be able to acquire documents without affidavits, witnesses and support letters from headmen. The Committee was disturbed to note that in some cases, children were left in the custody of grandparents or other guardians who could not trace the parents at the time of acquiring primary documents. This makes it difficult since some parents were said to have migrated across the borders into South Africa and Mozambique leaving their off-springs behind without any form of documentation. Section 25 of the *Birth and Death Registration Act (Chapter 5:02)* which provides that "no birth, still birth or death which occurs after the 20th June 1986 shall be registered after the expiry of twelve months from the date of such birth, still birth or death except with the written authority of the

registrar general.". This provision makes it difficult for single parents and guardians of minors who wish to assist minors to get birth certificates.

4.2.3 *Children born out of wedlock*

Section 12 (2) (a) of the *Birth and Death Registration Act* provides that "a registrar shall not enter in the register the name of any person as the father of a child born out of wedlock, except…., upon the joint request of the mother and the person acknowledging himself to be the father of the child". Requiring joint consent from both the mother and the acknowledged father can be impractical in many cases. The father might be absent, unwilling to acknowledge paternity, or even deceased. This provision can create unnecessary barriers for mothers seeking to have their child's father's name recognized. More so, obtaining necessary documentation, such as DNA tests or affidavits, can be time-consuming, expensive, and burdensome for parents, especially in rural or marginalized communities

4.2.4 *Children born out of marriages between refugees and local citizens*

The Committee was informed that there were cases were some refugees had married Zimbabwean citizens and had children born out of those marriages. Many foreign men engage in fraudulent marriages to obtain citizenship more quickly. After securing citizenship, they often abandon their wives, leaving children without documentation. Hence such children are exposed to the risk of becoming stateless.

4.2.5 *Transit and Border proximity challenges*

It was also brought to the Committee's attention that owing to the proximity of Mutare to Mozambique and Chiredzi to South Africa, people in these areas often cross borders in search of economic opportunities. Sometimes when they returned to the country, they brought back with them their children who would have been born outside the country and these added to the numbers of the many children who did not have access to primary documents. The reasons for failure to access such primary documents were attributed to non-existent birth records confirming the children`s birth by Zimbabwean citizens abroad. During hearings at Redwig mine, the Committee was also told that there were more than three hundred Mozambicans who had sought refuge at Redwig mine during the civil war in some part of Mozambique. Majority

of these migrants lacked primary documentation and their prolonged stay at the mine was considered unsustainable.

4.2.6 *Complex procedures*

Participants in Bulawayo, complained that requirements for individuals assisting minors in obtaining primary documents at the Registrar General's Office are challenging to the extent that some clients ended giving up before completing the process. For example, guardians of minors, foster parents, or social workers may be required to provide documentation such as, proof of guardianship, custody orders, and personal identification. The office may sometime conduct thorough verification procedures, requiring additional documents or interviews. They further submitted that, these documents can be difficult to obtain, especially in cases where children are orphaned, abandoned, or living in vulnerable situations. As a result, many had dropped out of school due to their inability to acquire birth certificates and national identification card. A proposal was made for the Registrar Department continue conducting mobile Births and ID registration blitz, with relaxed of registration requirements as proclaimed by His Excellence the President of Zimbabwe Cde Dr ED Mnangagwa. Areas like Ngozi Mine and Robert Sinyoka require immediate attention to enable children to participate in the 2024 Grade 7 examinations.

Some participants also complained that the fingerprint clearance process for National Identification Card applications takes more than six months for individuals over 18 years of age. This can lead to delays in using these documents when urgently needed.

However, those who were in support of the current *Birth and Death Registration Act (Chapter 5:02)* emphasized the need for tightening the law. They further argued that relaxing registration laws could pose a national security threat by allowing criminals from other countries to register in Zimbabwe. Some participants recommended tightening citizenship laws to ensure the country's security. The same sentiments were also supported by participants at the Hala Hotel in Bindura who commended the Civil Registry for effectively implementing the provisions of the Births and Deaths Registration Act (Chapter 5:02) when issuing primary documents. Some even testified to having acquired these documents without any difficulties. They concluded that the current laws on birth and death registration are sufficient and suitable for obtaining primary documents. Those who were against viewed these as time consuming, bureaucratic and expensive.

4.2.7 *Language barrier*

Incidents of language barrier were also highlighted where clients complained of cases where their names were misspelt by officials from the Registrar`s Office who were not conversant with local languages in these communities. In their submissions, members of such communities complained that it was quite costly for them to have those errors rectified. For example, an official from Registrar General`s office who is unfamiliar with Ndebele of Shona may misspell names leading to errors.

4.2.8 Lack of customer care services by RG officials

Participants across the country complained about the code of conduct by some officials from Registrar General's Office when handling clients. Most of the complaints against the officials include; lack of respect, tolerance, ignorance, bad attitude towards clients and unwillingness to assist clients. As a result, many clients felt discouraged from obtaining primary documents due to fear of mistreatment.

4.2.9 *High cost of acquiring Birth Certificates*

The costs of ferrying witnesses to the Registrars` General Offices for acquiring primary documents is too high for the ordinary citizens who also expressed their disapproval at the legislative requirement that did not take into account the fact that whenever one was requested to bring along the witnesses there was no due regard for the costs that one had to bear. These costs were related to witnesses` accommodation, meals and transport at a time when the vicissitudes of the economy had taken a turn for the worst. Suffice to say that opportunity costs of acquiring primary documents were particularly high for people living in the border areas of the country. The public viewed this as a breeding ground for corruption at the Civil Registry Department as they demand bribe for processing papers. They suggested a relaxation of some of the requirements by the Civil Registration Department.

4.2.10 *Lack of awareness*

Some participants in Chiredzi told the Committee that they always struggled to get primary documents from the Registrar's department since they did not meet the requirements of the *Births and Deaths Registration Act (Chapter 5:02)* such as having mother's particulars or relatives of mother and some did not denounce their citizens as required by law. The procedures

for obtaining primary documents are complex and time-consuming. Additionally, many migrants may be unaware of the requirements for obtaining primary documents or the consequences of not having them.

4.2.11 *Religious and cultural beliefs*

Some individuals highlighted that religious and cultural beliefs in naming children results in delayed birth registration. They pointed out that this had excluded them and their children from accessing education, health services and food aid.

Lack of primary documents have hindered to active participation in economic activities as they cannot be employed or open bank accounts or buy mobile lines. The impact of lack of access to primary documents deprives citizens of education to levels beyond grade seven hence a lot of students drop out of school before writing primary school examinations. This has an effect of prematurely ending their educational careers. Further to that talented sport persons find it difficult to represent the country or to participate competitively due to non-availability of their primary documents. Subsequently their potential in the sporting discipline is not realised. The increased numbers of undocumented nationalities have the potential of exposing the country to high security risk which may manifest itself in spiralling criminal activities and human trafficking. Consequently, it would be difficult to account for perpetrators of such activities as they would be unregistered. Suffice to say the numbers of undocumented nationalities will also continue to rise from one generation to the other. In addition, lack of access to primary documentation has the impacts of having false figures during census enumeration. It also results in stateless people, deprives citizens of their voting rights, basic rights, access to customary law benefits and other social benefits. Furthermore, the impact of lack of primary documents leads to inaccurate resource planning and retards poverty alleviation strategies by Government

5.0 COMMITTEE`S OBSERVATIONS

The Committee observed the followings:

7.1 The Committee observed that there was no quantitative research conducted to date to ascertain the number of stateless people in Zimbabwe. Statistics by Amnesty International of 300 000 people who are at risk of statelessness was based on approximation and secondary data from research that was conducted by UNHCR. The Committee felt that research was bias since it was based on estimation rather than factual since there was no

survey that was done by the government to ascertain the existence of statelessness people in Zimbabwe.

7.2 The Committee observed that most of the undocumented migrants prefer to live in illegal settlements in mining areas where no one will ask them to produce any form of documentation.

7.3 Some officials from RG offices are reluctant to assist individuals with unique issues, they usually turn away clients without on unclear grounds.

7.4 Although the Civil Registry Department have structures at both provincial and district level, their officers do not provide the specific requirements needed for one to obtain primary documents.

7.5 The requirement for bringing witnesses added costs to be incurred by those seeking primary document.

7.6 The Committee observed that undocumented migrants are a potential security risk to the country because it may be harder to identify and apprehend if they commit crimes, as they lack official records. This could hinder investigations and potentially allow some criminals to evade justice.

7.7 Undocumented individuals need to be assisted with primary documentation to enable them to participate in economic, social and political sector of their lives.

8.0 RECOMMENDATIONS

Committee recommends the following:

8.1 That government should set aside resources in order to conduct quantitative research to determine the number of people who are at risk of being statelessness in the country by 31st December 2025.

8.2 That, the Registrar General`s office should conduct public awareness programmes to encourage the public to obtain primary documents, outlining their importance including procedures for obtaining them particularly in mining areas where there are large numbers of undocumented people by 31st December, 2024.

8.3 The Civil Registry Department should undertake ongoing refresher courses and training in customer care for officers so that quality service may be provided by the Department at all centers by 31 July 2025.

8.4 The Civil Registry Department should specify at least minimum requirements needed for one to obtain either a birth certificate, National ID or Passport through advertisement of public outreach programs by 31st July 2025 in order to reduce unnecessary turn aways. This will help to reduce the number of people who are undocumented.

8.5 The Government to speed up the current efforts of training Traditional Leaders to facilitate the issuance of primary documents mainly Birth and Death Certificates by 31st December 2025. This will help to reduce the burden of transport cost and the requirement of bringing witnesses and it will also make it easy for people in the hinterland to acquire documents a service currently available urban centre.

8.6 The Ministry should give a special dispensation for those who fall victim to natural disasters such as floods, lightning and infernos. These should be given amnesty to acquire their primary documents without any cumbersome procedures by 31st July, 2025.

8.7 Treasury should allocate more funds to Civil Registry Department to enable them to conduct verification exercise to capture and record all the undocumented people so that they can be given a form of documentation in order for them to be identified and to participate in all aspects of life.

9.0 CONCLUSION

The Committee envisages that this report and recommendations contained therein will go a long way towards alleviating the plight of affected people. The public hearing on the statelessness of migrants enabled the Committee to get an appreciation of the challenges in front line provinces of the country with regards to the issuance of primary documents. It is, therefore, the Committee's fervent hope that the Ministry will consider this report and take remedial measures to expeditiously come up with policies that make it less cumbersome to acquire primary documents throughout the country. Such policies should include an amnesty by the Registrar General's Office in the handling of similar cases like the ones raised in this report.